The Act denies appellees the equal protection of the laws.

The Act violates the provisions of the Constitution of Louisiana and of the Constitution of the United States guaranteeing freedom of the press.

The constitutional guaranties against abridgment of the freedom of the press were intended to prohibit every form of abridgment conceivable in the minds of hostile legislatures.

The Act provides for a licensing of the press and a payment of a gross receipts tax on that portion of the revenues of the press derived from the sale and publication of advertising. Further, the Act is limited in its applicability to but thirteen newspapers out of a total of 163 in the State, of which thirteen newspapers twelve were active in their opposition to the dominant political group in the State, which group controlled the Legislature and at whose dictates the Legislature passed this law.

Among the efforts to restrain the press with which the framers of the Constitution were familiar were licensing, censorship, taxation, writs of attachment, seditious libel and injunction proceedings. Taxation as a form of restraint was well known and particularly obnoxious to our forefathers. The historical background of the First Amendment was fully discussed by this Court in its decision in *Near* v. *Minnesota,* 283 U. S. 697.

Not only the First Amendment, but the Fourth and Fifth grew out of the knowledge of our constitution-makers of efforts to control the press, which, if successful, would make it easy for dictators to control their subjects. See *Boyd* v. *United States,* 116 U. S. 616.

See American Debates by Marion Mills Miller, Vol. 1, p. 20; John Lennox and the Taxes on Knowledge, William Stewart, p. 8, as to application of the Stamp Tax, 1765, to newspapers in the Colonies.